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AZERBAIJAN

Human Rights Developments

Azerbaijani President Heydar Aliyev's hospitalization in early January and surgery in May created a climate of considerable political uncertainty throughout 1999, fueling rampant speculation regarding possible successors and causing the postponement of important legal reforms.

In early September, Aliyev stated that he was considering a third term as president. Although the constitution allows presidents to serve only two terms, Aliyev, who assumed the presidency in 1993 and began a second term in October 1998, reportedly believed that since the constitution was adopted in 1995, he is eligible for a third term. In the wake of the president's illness, some members of the opposition speculated that President Aliyev's son, Ilham, was being groomed to succeed his father as president.

Legislation affecting municipal elections slated for December 12 sparked protests from opposition parties. Nongovernmental organizations specializing in electoral reform called on the Azerbaijani government in August to balance the Central Election Commission and lower-level commissions with additional representatives of major opposition parties in an effort to ensure their impartial conduct during the elections.

On January 8, a revolt in the Gobestan prison was reported to have ended in a massacre. Authorities maintained that two political prisoners led twenty-five to thirty others to take prison guards hostage and demand transportation for an escape. Eleven prisoners were reported shot. Senior officials characterized the revolt as a coup attempt.

The Ministry of Justice claimed that an amnesty decreed in December 1998 had resulted in the release of over 4,000 prisoners by April. Opposition political parties reported that few political prisoners benefited from it.

Azerbaijan made little progress in ending torture in police custody and impunity for it. The government also failed to bring criminal procedure and other legislation governing detainee rights and due process into compliance with international standards, or to investigate and prosecute all credible allegations of torture. There were highly credible reports of police having detained, physically abused, and extorted money from detainees' family members. In July a protest at the Sadarak customs point in Nakhichevan led to one death, several wounded, and the subsequent detention of several opposition members. Authorities claimed that the opposition orchestrated the incident, but news media reported that it resulted from protests by local residents over bribery and corruption at the customs point.

The police continued the practice of harassing and threatening the family members of those wanted for questioning. In September, Nashuba Mirzazade, the wife of Rauf Rusulov, who is wanted by the police, reported that the police continued to subject her to an ongoing harassment campaign in an effort to coerce information from her regarding her husband's whereabouts.

A year after it lifted pre-publication censorship, the government continued to suppress freedom of the press through other means. The editors of twenty newspapers had held a ten-day hunger strike in November 1998 to protest the numerous spurious libel suits that officials had filed since the lifting.

Such libel suits-some of which resulted in fines clearly intended to bankrupt the papers-continued to be filed in Azerbaijani courts, which enjoy little if any independence from the executive. In June, the procuracy opened a criminal libel case against Irada Husseynova after she wrote an article in a Baku newspaper alleging that the president's brother, Jalal Aliyev, was involved in illegal gasoline distribution. In July, the procuracy's office opened criminal libel cases against editors and reporters at Yeni Musuvat (New Musuvat), Hurriyet (Freedom), and Azadlik (Freedom), all prominent opposition newspapers.

Meanwhile, physical abuse, harassment, and detentions of journalists continued. These included the reported beating of Rovshan Ismayilov of Ganun (Rights) magazine on April 13 by Nizami district police officers and the beating of Muhalifet (The Independent) newspaper reporter Yasha Agazadeat at the Yasamal district police station as he was attempting to report on police violence in August. Also in August, the editor of Reyting (Ratings) newspaper was called to the Ministry of National Security and questioned about his sources for an article about Nagorno Karabakh. In November 1998 a Baku court sentenced Fuad Gakhramanly to eighteen months of imprisonment for an unpublished article that authorities claimed outlined tactics to overthrow President Aliyev. Gakhramanly was freed in July, after Azerbaijani nongovernmental organizations mounted an extensive international campaign demanding his release.

In August, police in Kachmaz detained Ibrahim Ikrameddin, an adherent to the Jehovah's Witness faith, and searched his home without a warrant, confiscating religious literature. He was subsequently sentenced to fifteen days of administrative arrest, during which time he reported being beaten and threatened by police. Also in August, police and conscription commission officials harassed Rovshan Mursalov, also an adherent to the Jehovah's Witness faith, after he attempted to apply for alternative military service as a conscientious objector. Mursalov reported in November 1997 that a Baku procuracy investigator summoned him and others to the procuracy, where the investigator insulted and beat them in an attempt to force them to renounce their faith.

Defending Human Rights

In a highly welcome move, authorities allowed some Azerbaijani nongovernmental organizations to conduct monitoring visits in pretrial and post-conviction detention facilities, including the fifth corpus of the Bailov remand prison, which holds some political prisoners serving life sentences. During the visits, these monitors were permitted to interview detainees and take photographs. However, the government continued to deny international humanitarian organizations routine access to all detention facilities; this was deeply alarming given persistent reports of physical abuse in pretrial detention and rampant tuberculosis in post-conviction facilities.

The Role of the International Community

Council of Europe

The Council of Europe continued to review Azerbaijan's application for full membership. Unfortunately, as of this writing, the application process yielded limited progress in Azerbaijan's compliance with Council of Europe human rights norms.

Organization for Security and Cooperation in Europe (OSCE)

President Aliyev met with Armenian President Robert Kocharyan on several occasions during the year for direct talks aimed at a settlement of the Nagorno Karabakh conflict, while representatives of the OSCE pursued a resolution through its Minsk Group. The talks sparked public demonstrations and hunger strikes in September and October by some members of the opposition, protesting the government's position in the negotiations. The OSCE Representative on Freedom of the Media, Freimut Duve, much to his credit, actively pushed for greater press freedom in Azerbaijan. He visited Azerbaijan in February, urging reform of libel laws and intervened in the Gakhramanly case. Addressing the Permanent Council in July, Duve called for investigations into violence against journalists and criticized the lack of licensing for independent television stations.

United States

The U.S. State Department's Country Reports on Human Rights Practices for 1998 noted Azerbaijan's dismal human rights record in a wide range of areas, including denial of registration to political parties, suppression and detention of peaceful public demonstrators, detention of religious minorities, restrictions on freedom of the media including denial of broadcast licenses to independent television stations, and lack of an independent judiciary. In May, the U.S. State Department expressed disappointment that Azerbaijan had rejected appeals to release journalist Fuad Gakhramanly.

On the whole, however, U.S. policy toward Azerbaijan focused on promotion of oil and gas transport routes from the Caspian Sea region, while downplaying the government's continued failure to implement the institutional and legal reforms necessary to ensure respect for human rights, peaceful transitions of power through free and fair elections, and sustained, equitable economic development.

Relevant Human Rights Watch Report:

Azerbaijan: Impunity for Torture , 8/99

TOP OF PAGE